



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue, Room 206
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Erin Gates, PE, Staff Engineer *ENG*

DATE: June 4, 2025

SUBJECT: Right-of-Way License Agreement between Volunteers of America Northern Rockies and the City of Cheyenne

Please find attached a Right-of-Way License Agreement between Volunteers of America Northern Rockies and the City of Cheyenne for the connection of a storm sewer pipe from the onsite detention pond to the storm sewer network in Seymour Avenue near East 25th Street. In order to properly drain stormwater from the site, this outlet pipe needs to extend into the public right-of-way to connect to the existing network.

There are no financial implications associated with this Right-of-Way License Agreement. Your approval of this agreement is respectfully requested.

CITY CONTRACT # _____

RIGHT-OF-WAY LICENSE AGREEMENT

This Right-of-Way License Agreement ("Agreement") is by and between the City of Cheyenne, a municipal corporation organized and existing under the laws of the State of Wyoming ("City"), whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and Volunteers of America Northern Rockies ("Licensee"), whose address is 1876 S. Sheridan Avenue, Sheridan, WY 82801. The City and the Licensee are collectively referred to as "Party" or "Parties." This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS:

WHEREAS, the Licensee holds title to and has developed approximately 1.70 acres of land in the City of Cheyenne, County of Laramie, State of Wyoming ("Property"), more particularly described as being:

Lot 1, Block 1, VOANR Cheyenne East, City of Cheyenne, Laramie County,
Wyoming;
and

WHEREAS, the Property is served by an exclusive underground drainage facility which encroaches into the public right-of-way as shown on Exhibit A, attached hereto and incorporated by reference ("Facility"); and

WHEREAS, the City is prepared to grant a license to use a utility right-of-way ("License"), provided the Licensee agrees to certain terms and conditions.

NOW, THEREFORE, based on good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

1. Grant of License. The City grants to Licensee, its successors and assigns, the temporary, non-exclusive privilege of using the City right-of-way, commonly referred to as Seymour Avenue covering a portion of the lands described as Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, NE1/4 NE1/4 of Section 31, for a distance of approximately 21.6 feet, to be used as a detention pond outlet conveyance pipe, specifically subject to the remaining terms and conditions set forth herein. The Licensee hereby accepts this License, subject to the terms and conditions contained herein, and subject to any requirements or limitations of law, now or in the future, which may restrict the use or enjoyment of this License.

2. Term; Termination. This Agreement shall not be effective until it is approved by the Parties. This Agreement is a covenant running with the Property. Upon thirty (30) days written notice, the City may terminate this Agreement and revoke the License granted hereby. Nothing in this Agreement, nor the act of entering into this Agreement, shall be construed as a limitation of the City's authority to modify or abandon the right-of-way the City now has.

3. Responsibilities of Licensee. The Licensee, its successors and assigns, covenant and agree to perform and abide by each and every of the following:

a. Licensee shall pay to the City, on each successive occasion of use, the costs of any and all damages which may result from Licensee's use of this public right-of-way.

b. Licensee shall be solely responsible for any and all installations, repairs, maintenance, or other costs associated with its use of this public right-of-way, whether such costs are specifically enumerated herein or not.

c. Any and all utility lines, including pipelines, shall be placed in a manner so as to conform with recognized standards and applicable federal, state, or local laws, codes, and ordinances, and as directed by City. Any installation, alteration, or modification of any utility line shall be performed in compliance with the current standards and applicable federal, state, or local laws, codes, and ordinances, as may from time to time be amended. Any future alteration or modification of the Facility, utility, or device within the existing public right-of-way that is required, requested, or agreed to by the City shall be completed without delay and without cost to the City.

d. If the City should for any reason construct, reconstruct, move, or abandon any portion of the City's road wherein the Facility, utility, or device is located, Licensee shall, when required or requested by the City, move the Facility without delay and without cost to the City.

e. Upon request, the Licensee agrees to locate and mark the Facility, utility, or device being licensed in the following manner:

i. The Licensee, as a condition of approval for the License, agrees to locate the Facility identified by this License, when needed by the City for future construction and/or maintenance activities. This information will be the basis of plans prepared by or for the City for use by the City, its contractors, or the public.

ii. Location information will include the marking of the Facility on the ground, as specified by Wyo. Stat. § 37-12-301, *et seq.*, with the appropriate color. Location information will also include the nature and elevation of the Facility. For each location, the utility shall be tied both horizontally and vertically, by coordinates, to a datum determined by City and certified by a licensed surveyor. The information will be shown on plans created by Licensee, the utility company or Facility owner. A copy of the plans will be sent to the City. Costs associated with identifying and locating the Facility, as may be required from time to time, will be the responsibility of Licensee.

f. The Licensee shall be responsible for all maintenance and repair of the Facility and all associated drainage conveyance structures and appurtenances within and/or exclusively serving the Property.

4. Access Easement. The City is granted a permanent easement for access to the Facility in the event the City requires access to the Facility in the regular maintenance of the City's larger drainage network. If the City exercises this provision, the City will repair, replace, or rebuild any and all damage to the private property which shall be occasioned by the maintenance or other

access to the Facility at the City's expense. All other costs including the costs of maintenance activities (labor, material, equipment, etc.) shall be the responsibility of the Licensee as outlined in Section 2 above.

5. Binding Effect. This Agreement shall be binding upon and inure to the benefit of the Parties hereto, their respective personal representatives, heirs, successors, grantees, and assigns. This Agreement shall be recorded in the official records of the Clerk of Laramie County, Wyoming.

6. General Provisions.

a. Amendments. Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the Parties to this Agreement shall be incorporated by written instrument, executed and signed by all Parties to this Agreement.

b. Assignment. No Party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning Party, which approval shall not be unreasonably withheld.

c. Applicable Law. The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this Agreement and the Parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

d. Compliance with Laws. The Parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this Agreement.

e. Indemnification. Each Party to this Agreement assumes the risk of any liability arising from its own conduct. Each Party agrees that it will be responsible for any loss, claim, damages, or demands resulting from its negligence and the negligence of its employees and agents. Neither Party agrees to insure, defend, or indemnify the other.

f. Nondiscrimination. The Parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this Agreement.

g. Governmental Immunity. The City does not waive governmental immunity by entering into this Agreement and specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.

h. Third-Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the Parties to this Agreement and shall inure solely to the benefit of the Parties to this Agreement. The provisions of this Agreement are intended only to assist the Parties in determining and performing their obligations under this Agreement. The Parties to this Agreement intend and expressly agree that only parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a Party's performance or failure to perform any term or condition of this Agreement, or to bring an action for the breach of this Agreement.

i. Force Majeure. The performance of this Agreement by the Parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the Parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. This Agreement may be cancelled by any Party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other Party.

j. Severability. If any provision of this Agreement is found to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and enforceable. If a court finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

k. Notice. All notices arising out of or from the provisions of this Agreement shall be in writing and given to the Party either by regular mail or delivery in person.

l. Prior Approval. This Agreement shall not be binding upon the Parties, no services shall be performed under the terms of this Agreement, and no payments shall be made until this Agreement has been reduced to writing and approved by all necessary authorities.

m. Entirety of Contract. This Agreement and Exhibit represent the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

7. Signatures. In witness whereof, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

CITY OF CHEYENNE

Date

(SEAL)

Attest:

Kylie Soden, City Clerk

Patrick Collins, Mayor

**VOLUNTEERS OF AMERICA NORTHERN
ROCKIES**

3/7/2025

Date

Signed by:

Jeff Holsinger

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Print Name: Jeff Holsinger

Title: Chief Executive Officer

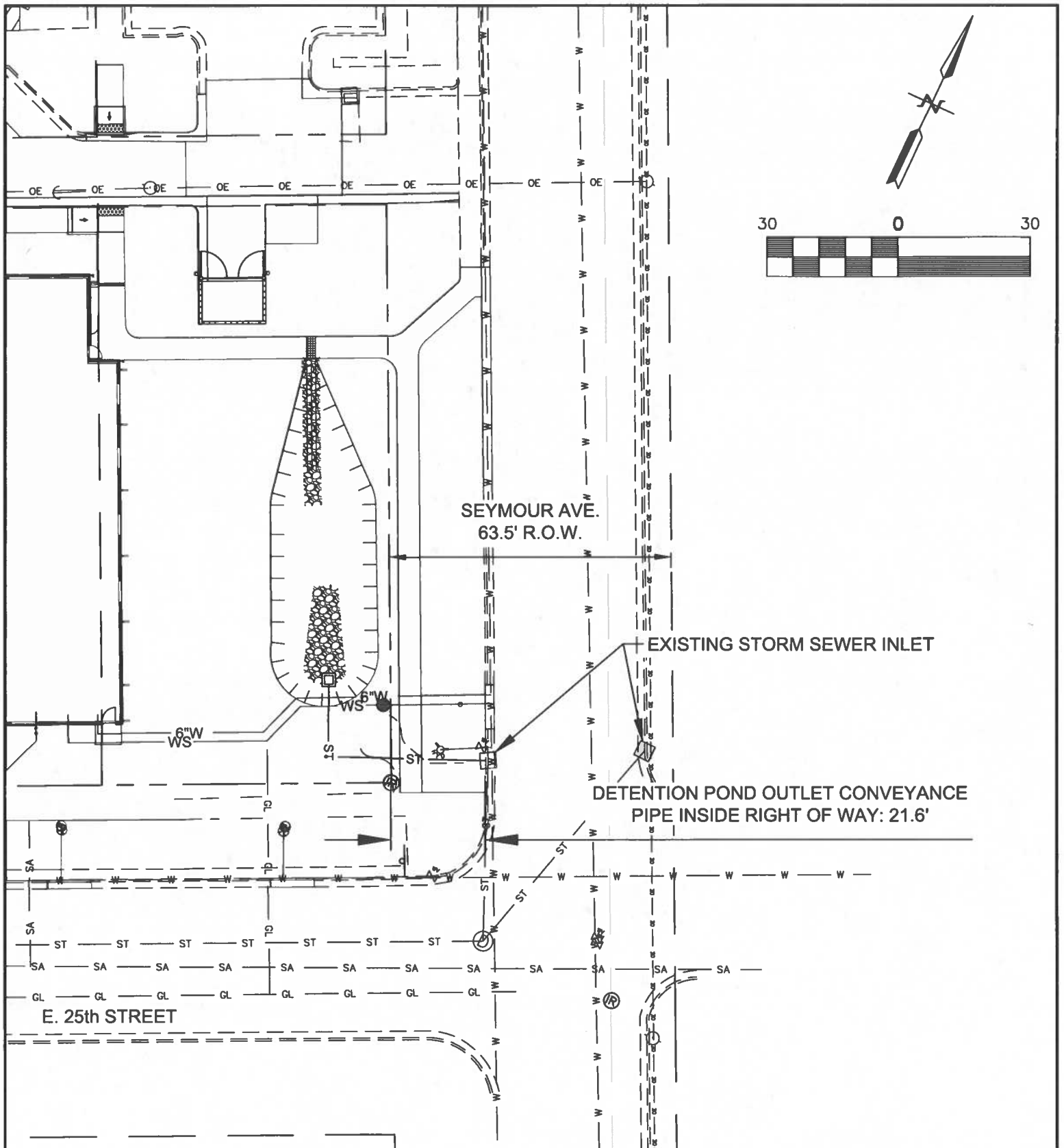


EXHIBIT A

VOLUNTEERS OF AMERICA NORTHERN ROCKIES
 LOT 1, BLOCK 1, VOANR CHEYENNE EAST, 604 E. 25th STREET, CHEYENNE, WY